

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Angel Riddle	Team: Squad #5	CCRB Case #: 202002155	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 09/04/2019 1:18 PM	Location of Incident: 48th Precinct stationhouse	Precinct: 48	18 Mo. SOL 3/4/2021	EO SOL 10/19/2021	
Date/Time CV Reported Fri, 03/13/2020 10:43 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Fri, 03/13/2020 10:43 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Jessica Riley	26009	967293	048 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Eddie Rios	01483	948412	048 PCT
2. POM Domenico Dinotte	24274	963012	048 PCT
3. POM Taulant Gjonbalaj	23964	963046	048 PCT
4. POM Francis Hernandez	13839	960662	048 PCT
5. POM Trevis Roberts	08510	958011	048 PCT
6. POM Willy Hilario	21759	962475	048 PCT
7. POM Kaseem Pennant	29437	965405	048 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POF Jessica Riley	Abuse: Police Officer Jessica Riley did not obtain medical treatment for § 87(2)(b)	

Case Summary

On March 13, 2020, § 87(2)(b) filed this complaint by leaving a voicemail on the CCRB's call processing system. § 87(2)(b) filed the complaint more than six months after the incident.

On September 4, 2019, at approximately 1:18 p.m., § 87(2)(b) was brought to the 48th Precinct stationhouse after being arrested for assault by Police Officer Jessica Riley of the 48th Precinct. After lodging § 87(2)(b) in the cells, PO Riley allegedly denied § 87(2)(b)'s request for medical attention (**Allegation A: Abuse of Authority, § 87(2)(g)**). § 87(2)(b) was later released from the stationhouse with a Desk Appearance Ticket.

The investigation obtained BWC footage from PO Riley (**BR02, summarized at BR05**) and from four other officers (**BR10-13, summarized at BR14-17**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Jessica Riley did not obtain medical treatment for § 87(2)(b)

§ 87(2)(b) provided statements when she filed the complaint (**BR09**), during an initial phone statement (**BR03**), and during a sworn interview (**BR01**). These statements were not consistent with regard to this allegation.

When she filed the complaint, § 87(2)(b) noted only that unspecified officers at the stationhouse would not allow her to get medical attention. In her phone statement, § 87(2)(b) stated that she asked approximately six or seven different officers for an ambulance while she was in the cells at the stationhouse, and that officers ignored her requests. § 87(2)(b) eventually asked PO Riley for an ambulance. PO Riley answered, "Wait," and went into her office for two hours.

§ 87(2)(b) testified during her phone statement that she did not begin to request medical attention until she was in the cells. However, during her sworn interview, § 87(2)(b) initially testified that she first asked PO Riley for medical attention inside a police vehicle during transport to the stationhouse. Later during the interview, however, § 87(2)(b) stated that she did not ask PO Riley for medical attention until they were in the stationhouse. She also specified that she never requested medical attention from any officer other than PO Riley. § 87(2)(b) wanted medical attention for unspecified minor injuries she sustained during a fight with a civilian prior to her arrest, which included a broken nail and "soreness." § 87(2)(b) also altered her account of how PO Riley responded to her request for medical attention. She recounted that PO Riley explained to her that taking her to the hospital would slow her arrest processing and increase her time spent in custody. § 87(2)(b) responded by telling PO Riley, "Alright." § 87(2)(b) testified that she did not rescind her request for medical attention. PO Riley left the cells and returned after an hour to take § 87(2)(b)'s fingerprints. PO Riley did not obtain medical attention for § 87(2)(b) before eventually releasing her with a DAT.

PO Riley used her BWC in accordance with NYPD regulations -- her BWC footage captures the arrest, the transport of § 87(2)(b) to the stationhouse, and the registration of § 87(2)(b) at the front desk (**BR02**). The footage shows that § 87(2)(b) did not request medical attention at any point during this time. PO Riley deactivated her BWC once § 87(2)(b) was being brought to the cells. None of the other officers who activated their BWCs during the arrest had footage from inside the stationhouse cells. The investigation could not obtain surveillance footage from the stationhouse because it had long expired by the time § 87(2)(b) filed this complaint. In addition, such surveillance footage would not have had audio.

PO Riley testified that § 87(2)(b) did not appear to have any injuries and did not mention anything about requiring medical attention at the scene of the arrest (**BR04**). She further denied that § 87(2)(b) ever requested medical attention during the journey to the stationhouse. PO Riley initially denied that § 87(2)(b) ever requested medical attention from her while at the stationhouse, but later said that she could not recall if § 87(2)(b) ever asked to see an EMT or if she ever told § 87(2)(b) to wait in response to such a request.

§ 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b) [REDACTED]
[REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
- PO Riley has been a member of service for two years and this is the first CCRB complaint to which she has been a subject.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this case.
- As of January 22, 2021, the New York City Office of the Comptroller has no record of a Notice of Claim being filed regarding this complaint (**BR07**).
- § 87(2)(b), § 87(2)(c) (impair contract awards or CBAs) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Squad No.: 5

Investigator:	<u>Angel Riddle</u>	<u>Inv. Angel Riddle</u>	<u>February 22, 2021</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Daniel Giansante</u>	<u>IM Daniel Giansante</u>	<u>February 22, 2021</u>
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date